

26SMCV04076 26SMCV04076

County: los-angeles

Division: Civil Law and Motion

Department: N

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Case Number: 26SMCV04076 Hearing Date: August 25, 2026 Dept: N

TENTATIVE RULING

Plaintiff John Doe's Motion for Order Nunc Pro Tunc to Amend the Complaint Filing Date to July 17, 2026 is GRANTED.

Plaintiff John Doe to give notice.

REASONING

Plaintiff John Doe ("Plaintiff") moves the Court for an order deeming the complaint in the within action filed as of July 17, 2026. Plaintiff's counsel represents that he believed the complaint was compliant with all statutes, rules, and procedures, but the complaint was rejected on July 23, 2026 due to failure to comply with Safe At Home Confidential Filing requirements, i.e., the required documents were not submitted, and the complaint was accepted on July 28, 2026 after counsel included Plaintiff's Safe At Home card and driver's license with the complaint and SH-001 form.

California Rules of Court, rule 5.560(f) provides that "[c]lerical errors in judgments, orders, or other parts of the record may be corrected by the court at any time on the court's own motion or on motion of any party and may be entered nunc pro tunc." Code of Civil Procedure section 367.3, subdivision (b)(1), states that any party using a pseudonym who participates in the Safe At Home program "shall file with the court and serve upon all other parties to the proceeding a confidential information form for this purpose that includes the protected person's name and other identifying characteristics being excluded or redacted." Subdivision (c) of Code of Civil Procedure section 367.3 states that "[i]n an action filed under this section, the plaintiff shall state in the caption of the complaint 'ACTION BASED ON CODE OF CIVIL PROCEDURE SECTION 367.3.'"

There is no indication in the July 28, 2026 complaint that Plaintiff included the required statement of 'ACTION BASED ON CODE OF CIVIL PROCEDURE SECTION 367.3,'" but given that the complaint was accepted without this, the Court assumes the clerk rejected the initial complaint for a different reason, specifically the failure to include the Safe At Home card or driver's license. The Court is unaware of any authority that would justify rejection on this basis. It follows that this rejection qualifies as the sort of clerical error that warrants correction. Accordingly, Plaintiff John Doe's Motion for Order Nunc Pro Tunc to Amend the Complaint Filing Date to July 17, 2026 is GRANTED. The filing date of the complaint shall be amended to reflect a filing date of July 17, 2026.